

The Bihar Jail Service (Departmental Examination) Rules, 1963

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State of Bihar - Act

The Bihar Jail Service (Departmental Examination) Rules, 1963

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The Bihar Jail Service (Departmental Examination) Rules, 1963

Rule THE-BIHAR-JAIL-SERVICE-DEPARTMENTAL-EXAMINATION-RULES-1963 of 1963

Published on 21 May 1963

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The Bihar Jail Service (Departmental Examination) Rules, 1963

Published vide Notification No. 14002. - J.L., dated 21st May, 1963

Notification No. 14002. - J.L., dated 21st May, 1963. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India read with sub-rule (2) or Rule 12 of the Rules for the Departmental Examination of Gazetted Officer published in the Appointment Department Notification No. V/De-109/61-A.-13559, dated the 10th October, 1961, the Governor of Bihar is pleased to make the following Rules for the Departmental Examination of the officers of the Bihar Jail Service. -

1.

Short title and commencement.

(a)

These Rules may be called the Bihar Jail Service (Departmental Examination) Rules, 1963.

(b)

These shall come into effect from the date of this Notification.

2.

Definition.

- In these Rules unless there is anything repugnant in the subject or context :-

(a)

"Central Examination Committee" means the Central Examination Committee constituted under Rule 3 of the Rules for Departmental Examination of Gazetted Officers; and

(b)

"Officers" means officers directly recruited to the Bihar Jail Service.

3.

Syllabus for Departmental Examination.

- Officers shall have to appear at and pass the Departmental Examination conducted by the Central Examination Committee as laid down in Rule 33 (b) of Part VI of the Bihar Jail Service Rules, 1953. The syllabus for the examination will be as follow :-

A. Principles of Penology and Criminology

There shall be one paper of one and half hour's duration (without books) consisting of questions to be set from the following three books. -

(i)

Criminology and Penology by J.L. Gillin.

(ii)

Probation and Parole by David Dresslor.

(iii)

Contemporary Corrections by Paul.

The full marks in this paper shall be 100 and pass marks shall be 40.

B. Law

There shall be one paper of one and half hour's duration without books on the following. -

(i)

Indian Penal Code, 1860 (45 of 1860).

(ii)

Probation of Offenders Act, 1958 (20 of 1958).

(iii)

Criminal Procedure Code, 1973 (2 of 1974)-Chapters II, III, IV, V, VI, VII, VIII, XXIV, XXVII, XXVIII, XXIX, XXX, XXXI, XXXIV, XXXVI, XXXVII, XXXIX, XL, XLVI.

(iv)

Prisons Act, 1898 (9 of 1898).

(v)

Prisoners Act, 1900 (3 of 1900).

(vi)

Lunacy Act, 1912 (4 of 1912).

(vii)

Suppression of Immoral Traffic in Women and Girls Act, 1956 (104 of 1956).

(viii)

The Indian Evidence Act, 1872 (1 of 1872).

(x)

The Preventive Detention Act, 1950 (4 of 1950).

The full marks in this paper is 100 and pass marks is 40.

C. Jail Administration

There shall be one paper of three hours duration (with books) on the Bihar Jail Manual both Volumes. The full marks in this paper is 150 and pass marks is 60.

D. Accounts

The examination in Accounts will be in two papers each carrying 100 marks. There will be only one standard with 50 percent as the pass marks. The following course has been prescribed.

Paper I - Without book. - Duration 1 ½ hours.

(i)

An Introduction to Indian Government Accounts and Audit (Second Edition) published in 1940 under the authority of the Auditor General of India-(Chapters 6, 7, 8, 9) paragraphs 138 to 164, 170, 179, 187 and 192 only) 10,11,13 to 19 and 27.

(ii)

The Bihar Treasury Code, Volume I, Chapters I to IV and Chapter V (Sections I, II and III only).

Paper II. - With Book. - Duration 1 ½ hours.

(i)

The Bihar Service Code, Chapters VI (Sections I and VIII only) and VII.

(ii)

The Bihar Treasury Code, Volume I

(iii)

Bihar T.A. Rules.

(iv)

Bihar Pension Rules, Chapters III, VIII (Section IX, and XI) Section I, II and XII.

E. Hindi

There will be only one written paper in Hindi in (Devanagari script) carrying 200 marks. The duration of the Examination will be three hours. The marks will be distributed as below :-

(i)

Noting-50.

(ii)

Drafting-50

(iii)

Translation-80 (Hindi to English-40 and English to Hindi-40).

(iv)

Correction of sentences-20.

Officers securing 50 per cent and above in the written paper will be declared to have passed by the Lower Standard and Officers securing 60 per cent and above would be declared to have passed by the higher standard.

2. the viva-voce examination in Hindi will carry 100 marks. The topics for viva-voce will be as follows. -

(i)

Conversation of General topics-40 marks.

(ii)

Testing knowledge of technical words and expressions generally used-30 marks.

(iii)

Reading of Hindi manuscripts and their oral translation into English and reading of passages in English and their translation into Hindi-30 marks.

3. The minimum marks required for passing the viva-voce by the Lower and Higher standard will be 50 per cent and 60 per cent respectively. An officer has to obtain the minimum pass marks separately in written examination and viva-voce for being declared to have passed in Hindi by either standard.

The following books are recommended :-

(i)

Navin Hindi Praveshika.

(ii)

Prashikshan Vyakhyan Mala, Parts I and II.

4.

Officer to intimate his intention to appear at departmental examination.

- An officer desirous of appearing at the departmental examination is required to intimate to this department not later than the 1st May, in the case of 1st half-yearly examination, and the 1st September, in the case of the 2nd half-yearly

examination his intention to appear at the Examination. On receipt of such application, the Secretary, Central Examination Committee shall be informed to take further necessary steps in the matter.

5.

Examination in tribal language.

(1)

An Officer posted in the areas mentioned in Part I of Appendix I to these Rules will have to pass the examination in the tribal language mentioned therein against the district in which he is posted by the Lower Standard, within a period of eighteen months from the date on which he is posted to that district. If he fails to do so his increment will be stopped until such time as he passes the examination:

Provided that if an officer is prevented from passing the examination by circumstances beyond his control, Government may grant him such further time for passing the examination as he consider necessary.

(2)

An officer whose increments have been stopped for failure to pass the compulsory examination in a tribal language shall get his increments, as soon as he is transferred to district outside the areas mentioned in Part I of Appendix I to these Rules or as soon as he crosses the age of 50 years whichever is earlier.

(3)

The stoppage of increments under this Rule shall not have cumulative effect.

(4)

An officer in Bihar outside the areas mentioned in Part I of Appendix I to these Rules will be eligible to appear at the optional examination in the tribal language mentioned in Part II of the said Appendix.

6.

Delay in passing of Departmental Examination or confirmation.

- If the passing of the departmental examination or the confirmation of the Officer be delayed the Officer will be entitled on fulfilling the condition mentioned above to draw pay at the stage in the time-scale to which he would have been entitled had there been no delay in passing of the departmental examination or in his confirmation.

Appendix

(See Rule 4)

Study of Tribal Language

Part I ? Compulsory Examination in Tribal Languages

1. An officer posted in the areas mentioned below must pass the compulsory examination in the tribal language noted against the district in which he is posted :-

(1)

Hazaribagh-Santhal.

(2)

Ranchi-Mundari.

(3)

Palamau-Oraon.

(4)

Singhbhum-Ho.

(5)

Santhal Parganas-Santhal.

(6)

Dhanbad-(only Chas and Chandan Kiari Police-Station Baghmara Sub-division of the district of Dhanbad)-Santhal.

2. The test which a candidate must undergo at the compulsory examination are as follows :-

(a)

he must be able to converse freely with people of the tribe, to understand and to make himself understood by them;

(b)

he must write down sentences spoken in the tribal language by one of the tribes and must explain the sentences correctly in English or Hindi; and

(c)

he must translate from English or Hindi into the tribal language sentences not of more difficult nature than those

described in clause (b) and the translation must be substantially correct and intelligible to people of the tribe in whose language it is written.

3. (a) The standard prescribed for the compulsory examination is the lower standard. In order to pass by this standard, the examinee must obtain not less than 50 per cent of the marks allotted to each branch of examination and 66 ? per cent of the aggregate.

(b)

The examinee shall be declared to have passed by the Higher Standard, if he obtains not less than 60 per cent of the marks allotted to each branch of the examination and 75 per cent of the aggregate. Passing by the higher standard shall be optional for all officers. An officer who passes by the lower standard shall be eligible to reappear at the examination for the higher standard, while an officer who passed by the higher standard shall be declared to have passed by the standard even though he has not previously passed by the lower standard.

4. Notwithstanding anything contained in paragraphs 2 and 3 above the compulsory examination in the case of officers who have put in 15 years or more of service, shall consist only of an oral test, in which the examinee must be able to converse freely with the people of the tribe to understand and to make himself understood by them. In this test the examinee shall be declared to have passed, if he secures not less than 50 per cent of the marks.

5. If an officer is posted to one of the districts named in paragraphs of this Appendix and duly passes the examination in the tribal language prescribed for that district, and subsequently posted to another district named in the same paragraph, for which a different tribal language is prescribed, it shall not be necessary for him to pass the examination in the tribal language of the latter district.

6. If an officer knows one of the languages mentioned in paragraph I of this Appendix as his mother tongue, and is posted to a district for which that language has been prescribed as the compulsory tribal language, he shall not be required to pass the compulsory examination in that language. If however, he is posted to a district for which the prescribed tribal language is different, from the tribal language which he knows as his mother tongue, he shall be required to pass the compulsory examination in the tribal language of that district.

7.

Examinations in the tribal languages shall be held once in six months in January, and June, each year. The Commissioners of Chotanagpur and Bhagalpur Divisions will be responsible for conducting these examinations. There shall be uniformity in the standard of examinations held in both the Divisions. The same set of question papers shall be set for examination in one particular language to be held on a particular date. The examination shall be held at the district head-quarters and the district officer shall, under the supervision and control of the Commissioner, be made responsible for conducting the examination. In case the District Officer has himself to appear at a particular examination, he will go to the Divisional Headquarters to appear at the examination in the presence of the Commissioner, and arrangements for holding the examination at the district headquarters will be supervised by the Additional Collector. If the Additional Collector himself has to appear at the examination, it should be so arranged that he and the District Officer appear on different dates. Different sets of question papers will be set for the examination held on different dates.

8.

The prescribed text-books in the different tribal language are the following :-

Name of language

Name of prescribed text-book

(1)

Santhali

Santhali Praveshika Part I and II by Sri Doman Sah,
Samir Editor of the "Hor Sambad", published by Santhal
Seva Mandal, Deoghar.

(2)

Mundari

AMundari Grammar with exercises by Rev, J. Hofmann,
S.J. Catholic Mission, Ranchi.

(3)

Oraon

Kath Ara Kath Billin Idu. by Dr. Christ Michael Tigga, K.B.

Kadru Ranchi.

(4)

Ho

Ho Kaji, by Shri Bhim Ram Sulanki, Chaibassa.

9.

Rewards will be given as mentioned below to candidates who pass the examination mentioned in paragraph I of this Appendix, within the stipulated time, subject to the condition that from all rewards granted, any rewards previously drawn for the same language will be deducted :-

Lower Standard

Higher Standard

Rs.

Rs.

Officer of Class I.....

750

1,000

Officer of Class II.....

500

800

Officer of Class III.....

250

400

10.

The Commissioners conducting the examination will report to Government the names of officers declared to have passed by each standard.

Note 1. - An officer, who appears only at oral test, as provided in paragraph 4 above, shall not be entitled to any reward.

Note 2. - No reward shall be given to any officer for proficiency in a second language of the same group.

The groups are -

Group 1. - Ho, Mundari, Santhali;

Group 2. - Oraon, Rajmahal Paharia;

Group 3. - Nepalese Paharia or Khas Kura.

Rules for the Optional Study of Tribal Languages

11.

Officers posted outside the areas mentioned in part I of this Appendix will be eligible to appear at the optional examination in the languages noted below :-

Group 1 Ho, Mundari, Santhali.

Group 2 Oraon, Rajmahal Paharia.

Group 3 Nepalese Paharia or Khas Kura.

12.

The tests which a candidate must undergo shall be as in Part I of the Appendix. In addition, the examination in Nepalese Paharia shall include a test in which the Examinee must transliterate and translate into English or Hindi a paper in the current written (not printed) form of character of the language.

13.

The standards of the optional examination and the percentage of marks required for passing by each standard shall be the same as for the compulsory examination in other tribal languages laid down in paragraph 3 of this Appendix.

14.

The examination shall be conducted under the control of the Commissioners, Chotangpur and Bhagalpur Division, who will convene local committee for the purpose.

Commissioner of Chotanagpur -

Group 1. - Ho and Mundari.

Group 2. - Oraon.

15.

The rewards to be given to successful candidates will be as detailed below subject to the condition that from all rewards granted, any rewards previously drawn for the same languages are deducted:

Commissioner of Bhagalpur -

Group 1 - Santhali.

Group 2. - Rajmahal Paharia.

Group 3. - Nepalese Paharia.

For all languages except Nepalese Paharia

Lower Standard

Higher Standard

Rs.

Rs.

Officer of Class 1.....

750

1,000

Officer of Class 2.....

500

800

Officer of Class 3.....

250

400

For Nepalese Paharia

Lower Standard

Higher Standard

Rs.

Rs.

Officer of Class 1.....

250

500

Officer of Class 2.....

150

300

Officer of Class 3.....

50

100

16.

The Commissioners, (Chotanagpur and Bhagalpur Divisions) will report to Government the names of officers declared to have passed by each standard.

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